

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alex Tuminello	Team: Squad #15	CCRB Case #: 201603207	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 04/07/2016 9:45 AM	Location of Incident: Inside of the Hoyt-Schermerhorn Street Subway Station	Precinct: 84	18 Mo. SOL 10/7/2017	EO SOL 10/7/2017	
Date/Time CV Reported Thu, 04/07/2016 7:06 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/13/2016 11:06 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Patrick Groves	30944	953931	TB DT30
2. LT Maurice Cecchetti	00000	903592	TB DT30
3. POM Nicholas Zummo	04089	954442	TB DT30
4. POM Anthony Flores	24840	950419	TB DT30

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Leszek Dadura	04784	929984	TB DT30
2. POF Monique Jenkins	17723	936265	TB DT30

Officer(s)	Allegation	Investigator Recommendation
A.LT Maurice Cecchetti	Discourtesy: Lieutenant Maurice Cecchetti acted discourteously toward § 87(2)(b)	
B.POM Patrick Groves	Force: Police Officer Patrick Groves used physical force against § 87(2)(b)	
C.POM Nicholas Zummo	Force: Police Officer Nicholas Zummo used physical force against § 87(2)(b)	
D.POM Anthony Flores	Force: Police Officer Anthony Flores used physical force against § 87(2)(b)	

Case Summary

On April 7, 2016, at approximately 9:45 a.m., § 87(2)(b) arrived at the Transit District 30 stationhouse located in Brooklyn in order to retrieve his vouchered property from an arrest on April 6, 2016. While at the front desk, he allegedly handed his property voucher to an officer identified as Lieutenant Maurice Cecchetti of Transit District 30. Lt. Cecchetti allegedly told § 87(2)(b) to come back to the command when he was not there and accused § 87(2)(b) of having an attitude. Lt. Cecchetti proceeded to allegedly flip the voucher back at § 87(2)(b) causing it to make contact with his chest and hit the floor (**Allegation A**). § 87(2)(b) was then escorted out of the stationhouse by two officers.

§ 87(2)(b) proceeded into the Hoyt-Schermerhorn Street Subway station. While in the mezzanine level, an officer identified as PO Patrick Groves of Transit District 30 approached him and allegedly grabbed his arms and chest. § 87(2)(b) alleged that PO Groves began to push him towards to an exit gate approximately 10 to 20 feet away. PO Groves allegedly proceeded to grab § 87(2)(b) from behind and push him into the gate. § 87(2)(b) alleged that PO Groves and two additional officers identified by the investigation as PO Nicholas Zummo and PO Anthony Flores of Transit District 30 allegedly turned him around and took him to the ground by grabbing all over his body (**Allegations B, C and D**). § 87(2)(b) alleged that the front side of his body made contact with the ground and he was handcuffed by PO Groves and walked back into Transit District 30 stationhouse.

§ 87(2)(b) was arrested and charged with § 87(2)(b)

On April 19, 2016, the undersigned investigator mailed a subpoena to the MTA Legal Department via USPS in regards to video footage from the Hoyt-Schermerhorn Street Subway Station in Brooklyn. On May 20, 2016, the undersigned investigator received the footage from the MTA Legal Department. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was unsuitable for mediation because § 87(2)(b) was arrested in regards to this incident.
- As of May 11, 2016, § 87(2)(b) has not filed a notice of claim with the Office of the New York City Comptroller's Office (Encl. Board Review 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Encl. Board Review 03).

- Lt. Cecchetti has been a member of the service for 22 years and has been the subject of one previous CCRB allegation involving one case. § 87(2)(g)
- PO Groves has been a member of the service for three years and has been the subject of three previous CCRB allegations involving two cases. § 87(2)(g) two force allegations have been pled against PO Groves in which none have been substantiated.
- PO Zummo has been a member of the service for three years and this is the first CCRB allegation pled against him.
- PO Flores has been a member of the service for five years and this is the first CCRB complaint filed against him.

Findings and Recommendations

Allegation A: Discourtesy- Lieutenant Maurice Cecchetti acted discourteously toward

§ 87(2)(b)

§ 87(2)(b) stated that while at the Transit District 30 stationhouse in Brooklyn, he proceeded towards the front desk and interacted with Lt. Cecchetti. § 87(2)(b) handed a property voucher to Lt. Cecchetti in order to retrieve his property from a previous arrest. Lt. Cecchetti accused § 87(2)(b) of having an attitude and told him to come back when he was not there. § 87(2)(b) alleged that he was acting normal and not screaming or cursing. § 87(2)(b) alleged that Lt. Cecchetti then took the voucher and flipped it with his hand at § 87(2)(b) § 87(2)(b) alleged that the voucher made contact with his chest and hit the ground.

Lt. Cecchetti stated that while assigned to the desk at Transit District 30, he heard § 87(2)(b) yelling at officers from approximately 20 feet away. He stated that § 87(2)(b) was at the command attempting to retrieve his property and was yelling at school team officers which included PO Zummo and PO Groves. § 87(2)(b) allegedly stated to the officers, “Take your fucking gun belt and shield, I’ll kick your fucking ass. You think you are tough because you have a gun and shield.” Lt. Cecchetti walked over to § 87(2)(b) and told him to leave the command and come back later when he was calm. Lt. Cecchetti stated that § 87(2)(b) never handed any officers a voucher and a voucher was never thrown back at § 87(2)(b)

PO Groves, PO Zummo, PO Jenkins and PO Flores all identified themselves as being present in the stationhouse when § 87(2)(b) arrived to retrieve to his property and stated that he was yelling and cursing at the officers. PO Groves and PO Jenkins both testified that § 87(2)(b) threatened numerous officers in the command and asked them to take off there gun and badge and step outside. PO Groves, PO Zummo, PO Jenkins and PO Flores all testified that at no point did Lt. Cecchetti throw a voucher back at § 87(2)(b) PO Groves was the only officer that testified that Lt. Cecchetti had § 87(2)(b)s property voucher in his possession but once again reiterated that the voucher was handed back to § 87(2)(b) and not thrown.

§ 87(2)(g)

§ 87(2)(g)

Allegation B: Force- Police Officer Patrick Groves used physical force against § 87(2)(b)

Allegation C: Force- Police Officer Nicholas Zummo used physical force against § 87(2)(b)

Allegation D: Force- Police Officer Anthony Flores used physical force against § 87(2)(b)

§ 87(2)(b) alleged that while in the mezzanine area of the Hoyt-Schermerhorn Street Subway station in Brooklyn, he was approached by PO Groves. PO Groves proceeded to grab § 87(2)(b)'s arms and chest and pushed him towards the emergency exit gate which was approximately 10 to 20 feet away. PO Groves allegedly grabbed § 87(2)(b) from behind and pushed him into the gate which caused the front of § 87(2)(b)'s body to make contact with the gate. § 87(2)(b) stated that two officers identified by the investigation as PO Zummo and PO Flores approached the location while PO Groves grabbed § 87(2)(b) all over his body and took him to the floor. § 87(2)(b) alleged that the front side of his body including his face made contact with the ground and he was handcuffed by PO Groves.

PO Groves stated that as he stood inside of the Hoyt-Schermerhorn Street Subway station, § 87(2)(b) approached him and stated, "Fuck you, this is bullshit, take that gun and badge off and I will fuck you up." PO Groves advised § 87(2)(b) to calm down or he would be ejected from the station. § 87(2)(b) responded, "Fuck you, I will say what I want." PO Groves told § 87(2)(b) that he would now be ejected from the station and used his right arm to hook under § 87(2)(b)'s left arm in order to guide him out. § 87(2)(b) attempted to pull his arm away and PO Groves screamed for PO Zummo to come over to his location.

PO Zummo stated that he made his way over to PO Groves location and proceeded to hook his arm around § 87(2)(b)'s left arm. The officers walked PO Groves to the emergency gate and § 87(2)(b) began to actively resist by pulling his arms, pushing away and refusing to give his arms. The officers both articulated that § 87(2)(b) refused to leave the transit system.

PO Groves stated that he instructed PO Zummo to let go of § 87(2)(b) and he proceeded to wrap his arms around § 87(2)(b)'s waist and swung him to the ground. PO Groves stated that § 87(2)(b)'s body made direct contact with the ground and he continued to actively resist before being handcuffed approximately 10 to 15 seconds later.

PO Flores stated that he was in the Transit District 30 stationhouse when he observed PO Groves and PO Zummo grabbing each one of § 87(2)(b)'s arms and walking him out of the subway station. § 87(2)(b) was swinging his body and cursing at the officers. PO Flores stated that he rushed out of the command and moved towards the emergency gate. PO Flores opened the gate for the officers and stated that as he turned around, the officers and § 87(2)(b) fell to the ground and he did not observe the specific action that brought § 87(2)(b) to the ground. PO Flores stated that he may have grabbed § 87(2)(b)'s arm to help assist the officers but he was not sure.

Lt. Cecchetti and PO Jenkins also stated that they did not see the specific move that brought § 87(2)(b) to the ground, and by the time they made their way over, § 87(2)(b) was in handcuffs.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].



2016-07-11_14-28-42.mp4

§ 87(2)(b)'s medical records indicate that he was transported to § 87(2)(b) in Brooklyn, in regards to a laceration to his right hand. § 87(2)(b)'s medical records also indicate that he suffers from bi-polar disorder. The medical records do not address any other injuries and he was discharged to NYPD custody.

Patrol Guide Procedure 221-01 (Encl. Board Review 04) explicitly states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. If the force used is unreasonable under the circumstances, it will be deemed excessive and in violation of department policy.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 15

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

